

26STCV07811 26STCV07811

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-14

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Case Number: 26STCV07811 Hearing Date: August 14, 2026 Dept: 407

Final Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

14, 2026 TRIAL DATE: Not set

CASE: Oscar

Chun-Fong Chan v. Harris Chun-Hoi Chan, et al.

CASE NO.: 26STCV07811

DEFENDANT

HARRIS CHUN-HOI CHAN'S EX PARTE APPLICATION

FOR

DISMISSAL

PLAINTIFF'S

EX PARTE APPLICATION FOR LEAVE TO FILE FIRST

AMENDED

COMPLAINT LATE

I. STATEMENT OF MATERIAL FACTS AND/OR

PROCEEDINGS

Defendant Harris Chun-Choi Chan moves ex parte for

dismissal of Plaintiff Oscar Chun-Fong Chan's Complaint because Plaintiff failed to file an amended complaint within 15 days of the Court's sustaining Defendant's demurrer to the Complaint.

Plaintiff Oscar Chun-Fong Chan moves ex parte for leave to file a late amended pleading.

RULING: The Ex Parte Applications are DENIED.

II. DISCUSSION

Pursuant to Code of Civil Procedure section 166(a)(4), the Court rules on the Ex Parte Applications in chambers.

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'A court will not grant ex parte relief 'in any but the plainest and most certain of cases.' (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal.App.5th 253, 257.) Substantively, '[a]n applicant must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte.' (Cal. Rules of Court, rule 3.1202(c) 'A trial court should deny an ex parte application absent the requisite showing.' (People ex rel. Allstate Ins. Co., at p. 257.)" (Newsom v. Superior Court (Sutter County) (2020) 51 Cal.App.5th 1093.)

Here, neither party make the requisite showing to merit ex parte relief. There is no demonstrated exigency or risk of irreparable harm. The parties are directed to bring noticed motions.

III. CONCLUSION

For the foregoing reasons, the Ex Parte Applications are Denied.

The clerk of the court to give notice.

Dated: August 14, 2026

Brock T. Hammond

Judge of the
Superior Court